

PATENT APPLICATION

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re application of:

Suresh Kumar GUPTA

Appln. No.: 12/669,339

Confirmation No.: 3400

Filed: April 22, 2010

For: SYNERGISTIC HERBAL COMPOSITION

Docket No: Q116768

Group Art Unit: 1655

Examiner: Clark, Amy Lynn

AMENDMENT UNDER 37 C.F.R. § 1.111

Mail Stop Amendment
Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

In response to the Office Action dated November 14, 2011, please amend the above-identified application as follows on the accompanying pages.

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AMENDMENTS TO THE CLAIMS

This listing of claims will replace all prior versions and listings of claims in the application:

LISTING OF CLAIMS:

1. (currently amended): A synergistic herbal ophthalmic composition in the form of an eye drop, ointment, cream or gel suitable for ophthalmic administration for delaying the progression and onset of ~~useful against cataract~~ cataracts comprising a mixture of an extract of herbs selected from the group consisting of Foeniculam Foeniculum vulgare, Murraya koenigii and Triphala optionally along with a pharmaceutically acceptable excipient, wherein the composition comprises Foeniculum vulgare in an amount of 0.10 to 2.0% by weight, Murraya koenigii in an amount of 0.10 to 2.0% by weight, and Triphala extract in an amount of 0.10 to 5.0% by weight.
2. (canceled).
3. (currently amended): A ~~The~~ synergistic herbal composition as claimed in claim 1, wherein the composition ~~preferably~~ comprises Foeniculum vulgare in an amount of 0.3% by weight, Murraya koenigii in an amount of 0.3% by weight, and Triphala extract in an amount of 0.5% by weight.

S.No.	Herbs	%age by weight
1	<i>Foeniculam vulgare</i>	0.3 %
2	<i>Murraya koenigii</i> extract	0.3%
3	<i>Triphala</i> extract	0.5 %

4. (currently amended): ~~A synergistic~~The herbal ophthalmic composition as claimed in claim 1, wherein the pharmaceutically acceptable excipient is selected from the group ~~comprising~~ consisting of a solubility enhancing agent ~~such as~~ polyserbate, cyclodextrin and their derivative, Cremophore RH 40, ~~a~~ Viscosity ~~viscosity~~ increasing agents ~~agents~~ such as Hydroxypropylmethylcellulose and other suitable cellulose derivative, polyvinyl alcohol, povidone, carbopol caragenin, anti-oxidants such as citric acid, EDTA and salts thereof, sodium metabisulphite and other approved water soluble anti-oxidants, buffering agents such as citrate, borate, phosphate, citro-phosphate and, osmolarity adjusting agents such as sodium chloride, mannitol, glycerol, and preservatives such as benzalkonium chloride, sorbic acid, methyl paraben, propyl paraben and salts thereof.

5. (canceled).

6. (withdrawn/ currently amended): A process for preparing the synergistic herbal ophthalmic composition as claimed in claim 1, wherein the said process comprises the following steps:-

(a) Coarsely grinding the individual herb ~~such as herein described~~ and extracting it with solvents having different polarity selected from the group ~~such as~~ consisting of water, alcohol, acetone, ethyl acetate, ~~Petroleum~~ petroleum ether, chloroform or their ~~mixture in different ratio~~ and mixtures thereof;

- (b) Optionally concentrating the extract obtained in step (a) under vacuum and converting the same ~~either to be~~ in the form of a thick paste having around 20-30 % solids or to be in the form of a dry powder; and
- (c) Formulating a pharmaceutically acceptable herbal composition by combining the extracts obtained in step (a) and optionally obtained in ~~or~~ step (b) in different ratios ~~such as herein described~~ to yield the synergistic herbal ophthalmic composition in the form of an eye drop, an ointment, a cream or a gel;
- (d) ~~Alternatively the extraction can also be performed using distillation method and distillate can be directly used for formulating synergistic herbal composition such as herein described.~~

7. (withdrawn/new): The process for preparing the synergistic herbal composition as claimed in claim 6, wherein in step (a) the extraction is performed using a distillation method, and the distillate is directly used for formulating the composition according to step (c).

8. (new): The herbal ophthalmic composition as claimed in claim 4, wherein the solubility enhancing agent is selected from the group consisting of polysorbate, cyclodextrin and derivatives thereof and polyoxyl 40 hydrogenated castor oil.

9. (new): The herbal composition as claimed in claim 4, wherein the viscosity increasing agent is selected from the group consisting of

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hydroxypropylmethylcellulose and other suitable cellulose derivatives, polyvinyl alcohol, povidone, carbopol and caragenin.

10. (new): The herbal composition as claimed in claim 4, wherein the antioxidant is selected from the group consisting of citric acid, ethylene diamine tetraacetic acid (EDTA) and salts thereof, sodium metabisulphite and other approved water soluble antioxidants.

11. (new): The herbal composition as claimed in claim 4, wherein the buffering agent is selected from the group consisting of a citrate, a borate, a phosphate, and a citric phosphate.

12. (new): The herbal composition as claimed in claim 4, wherein the osmolarity adjusting agent is selected from the group consisting of sodium chloride, mannitol and glycerol.

13. (new): The herbal composition as claimed in claim 4, wherein the preservative is selected from the group consisting of benzalkonium chloride, sorbic acid, methyl paraben, propyl paraben and salts thereof.